सीमाशुल्क आयुक्त (आयात) का कार्यालय
OFFICE OF THE COMMISSIONER OF CUSTOMS (IMPORT),
मुंबई ज़ोन -III, जन संपर्क अनुभाग, हवाई माल संकुल
MUMBAI ZONE – III, PRO CELL, AIR CARGO COMPLEX,
सहार, अंधेरी (पूर्व), मुंबई- ४०० ०९९
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**F. No.-S/3-MISC-PRO-516/2013 ACC (I) Part 7** **Date: 22.02.2022**

**MINUTES OF THE**
**PERMANENT TRADE FACILITATION COMMITTEE MEETING HELD ON 25.02.2022**

The monthly meeting of the Permanent Trade Facilitation Committee (PTFC) for Air Cargo Complex, Sahar, was held on 25.02.2022 at 03:00 P.M. which was chaired by Shri P.V.N. Suresh Babu, Commissioner of Customs (Import). In view of the government advisory regarding "social distancing" and preference for eschewing avoidable movements to combat the threat of Covid-19, the meeting was conducted via Web Conference.

The following officers and representatives of various stakeholders participated in the meeting:

| **Name & designation** | **Organization** |
|---|---|
| Shri M. Rammohan Rao, Addl. Commissioner (Import) | Customs, ACC, Mumbai |
| Shri Vinay Kumar Arya, Addl. Commissioner (Import) | Customs, ACC, Mumbai |
| Ms. Taruna Kumari, Addl. Commissioner (General) | Customs, ACC, Mumbai |
| Ms. Mamta Saini, Jt. Commissioner (Import) | Customs, ACC, Mumbai |
| Shri Sudhakar Pandey, Jt. Commissioner (Export) | Customs, ACC, Mumbai |
| Shri Nitish Pathode, Deputy Commissioner, EDI & Import Shed | Customs, ACC, Mumbai |
| Shri Harish D. Hinduja, Asstt. Commissioner (PRO, Import) | Customs, ACC, Mumbai |
| Shri M. Prabhakar, Asstt. Commissioner (PRO (Carnet) & Import Shed) | Customs, ACC, Mumbai |
| Shri Vibhor R. Goyal, Deputy Commissioner, General | Customs, ACC, Mumbai |
| **Name of attendees of stakeholders** | **Organization** |
| Shri Kaushal Thakkar, Shri Ketan Desai, Shri Sanjeev, Shri Rahul V Bhojani, Shri Dushyant Mulani, Shri Sorab | BCBA |
| Mr. R G Meena | PQ |
| Shri Jayesh S Parab | MACCIA |
| Sh. Bala Ayer | ACAAI |
| Shri Murthy, Sh. Ashok, Sh. Mayur, Sh. Nasir | MIAL |
| Shri Nimesh Desai | WISA |
| Shri Mahesh Kamble | Air India |
| Shri Rakesh Burman | WCCB |
| Shri Sanjay Patankar | BAR CC |
| Shri Harish Zade | Lufthansa Cargo |
| Shri Ajay Naik | BAR CC |
| Shri Newton Fernandes | All Nippon Airlines |

At the outset, Commissioner of Customs (Import) welcomed the members of Trade, Customs Broker Associations, Representatives of Airlines/Custodian, and other stakeholders present for the virtual meeting.

Following agenda points were taken up:

## A. OPEN POINTS FROM LAST PTFC MEETING HELD ON 29.12.2021

### 1. Delay in getting BC Challan/Gatepass at MIAL and Air India Counter

BCBA informed that there is tremendous delay in clearance of import consignments, either the system is down or due to lack of staff. Members are also facing difficulty in reporting to MCSC/MIAL in such situation. BCBA requested MIAL to provide details of the person to be contacted from both the Custodians in case of any difficulty.

In previous meeting, Mr. Nasir, MIAL informed the members that they had informed the name of the members whom can be contacted regarding any query and agreed to the request of BCBA regarding issuance of a notice in this regard.

Mr. Errol D'Souza, Air India informed the members that they are in the process of the same. Commissioner (I) directed Air India to issue a notice/circular in this regard before next PTFC meeting.

BCBA informed that there is no delay now and requested to close the point.

**(Point Closed)**

### 2. Delay in re-imbursement of TDS amount from Air India.

BCBA submitted that AIR INDIA is delaying the re-imbursement of TDS amount since past 2 years. i.e. 2016-17 & 2017-18. BCBA requested to instruct AIR INDIA Authorities not to delay the re-imbursement amount to members.

In previous meeting, Mr. Errol D'Souza, Air India had informed that they have noted the point and this point has already been brought to the notice of their Finance Team. Commissioner (G) directed Air India to check it up and give a commitment date to the trade. Air India requested for some time.

Mr. Errol D'Souza, Air India informed that they would provide the contact details of their finance team in Delhi who can be contacted by the trade for faster progress in this regard.

There was no one present on behalf of Air India, therefore, point would be taken up in next meeting. Commissioner directed to convey the same to Air India.

**(Point Open)**
**(Action By: Air India)**

## B. Fresh Agenda Points:

- **Sponsored by BCBA-**

### 3. First time registration of SVB related cases:

BCBA submitted that with Govt. focus on Make in India, there are considerable foreign companies who are investing in India for carrying out their business operations. For clearance of their consignments which involves related party transaction (SVB), the file needs to be sent to SVB

Dept. for registration. BCBA submitted that this is taking considerable time at present in carrying out procedural requirement, which was not being insisted earlier. BCBA requested that since import of consignment by Air is always a time bound requirement and hence as per the earlier procedure, whenever first such consignment arrives which requires SVB registration, the file work process may kindly be completed within 2 working days and clearance of import consignment kindly be allowed. We humbly suggest that there is no requirement of insisting of NIDB data in such cases.

BCBA informed the members that matter is getting delayed due to NIDB data for similar imports and requested not to insist the same. Commissioner (I) informed that NIDB data access has to be with all appraising officers as well as ACs/DCs posted in groups. Commissioner (I) further suggested BCBA to meet ADC (I) and try to find the solution as far as NIDB data is concerned.

**(Point Open)**
**Action By: BCBA and ADC (I)**

4. **While carrying out the procedures for Change of Ownership for consignments which are stored in Custom Bonded warehouse, the trade is facing tremendous delay for 7 to 10 days which was earlier getting done in one day.**

BCBA informed the members that for transfer of ownership of goods stored in Custom Bonded Warehouse, manual process as contained in a PN of year 1995 is being followed i.e. era before EDI.

Commissioner (I) suggested BCBA to submit detailed grievance to Bond section and submit the point to PTFC if grievance not solved.

**(Point Closed)**

**5. The custodian AIASL (AIR INDIA) is not issuing the payment receipt duly signed / digitally signed like other custodian i.e. MIAL.**

There was no one present on behalf of Air India and, therefore, point would be taken up in next meeting. Commissioner (I) directed ADC (I) to convey the same point and seek reply from Air India for next meeting.

**(Point Open)**
**(Action By: Air India)**

**6. Trade requires proper receipt from PGA's towards charges being paid to them for testing. For E.g. FSSAI recovers charges for testing of samples, however GST details are not appearing properly on the receipt. PGA should observe laws and procedures laid down by Govt. of India.**

BCBA informed that while payment to PGAs is made online, GST amount is not shown separately in the final Bill but customer usually insist for the same. Commissioner (I) asked BCBA if they had taken the matter with various PGAs. BCBA submitted that they had taken with 2-3 PGAs. ADC (I) suggested BCBA to submit a letter in this regard and they would circulate the same to all PGAs.

**(Point Closed)**

The meeting ended with a vote of thanks to the Chair.

This is issued with the approval of Commissioner of Customs (General /Import/ Export), Mumbai Customs Zone-III.

22/08/2022

**(M. Rammohan Rao)**
**Addl. Commissioner of Customs (Import)**
**Air Cargo Complex, Mumbai**

**COPY TO:**

1. Pr. Commissioner / Commissioner of Customs, Import / Export / General, ACC.
2. All Addl./Jt. Commissioner of Customs, Import / Export / General, ACC.
3. All members of PTFC meeting including BCBA & ACAAI. (via E-mail)
4. DC/EDI for uploading on ACC website (via E-mail)
5. PGAs, ACC, Mumbai (via E-mail)
6. Office copy.